

Tentative Rulings and Resolution Review Hearings
June 29, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

AMANN VS. NORTH STATE SECURITY, INC.

CASE NUMBER: 24CV-0206698

Tentative Ruling on Motion for Final Approval of Class Action and PAGA Settlement: Plaintiff Nicholas Amann brought this wage and hour class action and Private Attorneys General Act ("PAGA") matter against Defendant North State Security, Inc. The parties have settled the matter for a total of \$1,100,000.00 and seek final approval by the Court. As a preliminary matter, Plaintiff seeks certification of the class. This Court's general practice is to certify a class for settlement purposes at the preliminary approval stage. While not requested at the time, the Court granted certification of the class when ruling on the Motion for Preliminary Approval. The Court refers the parties to the tentative ruling dated March 2, 2026 which was adopted as the final ruling.

Final Approval of the Settlement. The proposed final breakdown for the settlement is as follows:

Total Settlement Amount	\$1,100,000.00
Proposed Attorneys' Fees	-\$385,000.00
Litigation Costs and Expenses	-\$25,848.51
Settlement Administration Costs	-\$9,650.00
Proposed Class Representative Enhancement	-\$7,500.00
PAGA Claim Settlement Allocation	-\$50,000.00
Payment to Labor and Workforce Development Agency (LWDA) (65%)	(\$32,500.00)
Payment to Aggrieved Employees as Individual PAGA payments (35%)	(\$17,500.00)
Remaining to be Disbursed to Class Members and PAGA Employees	\$639,501.49

The settlement class is comprised of 494 individuals. Individual payments are based on a pro rata amount of pay periods worked during the class period. No claim form was necessary to participate in the settlement. Unless a class member opted out, they will receive a payment based on the time worked as calculated by the settlement administrator.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class

members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced mediator. Lastly, the overall reaction of the class to the proposed settlement was overwhelmingly positive. Notice was provided to 96% of the class members and not one class member objected. No requests for exclusion or workweek disputes were received. With the Court already having preliminarily approved this settlement, Plaintiff having complied with the terms of the Court's March 2, 2026 Order, and no objection being raised, there does not appear to be any reason why the Court should not now grant final approval of the settlement.

Costs and Expenses. Plaintiff seeks reimbursement for costs and expenses of \$25,848.51. The Court preliminary approved costs up to \$27,000. The incurred and anticipated costs appear to be appropriate. The Court finds that the \$25,848.51 in costs and expenses incurred by Plaintiff's counsel are reasonable and were necessary to the prosecution of this action.

Enhancement Award. Plaintiff requests a class representative enhancement payment of \$7,500 for Plaintiff Nicholas Amann. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394-95, citing *Van Vracken v. Atlantic Richfield Co.* (1995) 901 F. Supp. 294, 299. Plaintiff estimates that he has spent 27 hours assisting his attorneys with the lawsuit. Plaintiff's efforts have resulted in a monetary benefit to the class members and the State of California. Plaintiff took a risk in bringing the litigation and also signed a general release that the rest of the class did not sign. There has been no objection by any member of the class to the enhancement award. The Court finds that the \$7,500 class representative enhancement award to Plaintiff Nicholas Amann is reasonable.

Settlement Administration Costs. The Court authorized ILYM Group, Inc. as the settlement administrator with an estimated cost of up to \$10,000, however, the actual request is for \$9,650. Nathalie Hernadez, a case manager for ILYM Group, provided a declaration that details the work done by ILYM Group. Zachary Greenberg provided an estimate that details settlement administration costs. The Court finds \$9,650 to be reasonable for settlement administration costs.

Attorneys' Fees. Plaintiff is requesting attorneys' fees of 35% the settlement amount, or \$385,000, and argues that the requested fees are reasonable under the common fund doctrine and a lodestar cross-check. Under the common fund doctrine, "when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund." *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the

case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorneys' fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys' fees as a percentage of the common fund. There, the Court affirmed an attorneys' fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, "including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation." *Id.* at 503. The trial court may cross-check a common fund attorneys' fees award with an abbreviated lodestar calculation for the purpose of "bringing a measure of the time spent by counsel into the trial court's reasonableness determination." *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra*, 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the Court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

A lodestar cross-check thus provides a mechanism for bringing an objective measure of the work performed into the calculation of a reasonable attorney fee. If a comparison between the percentage and lodestar calculations produces an imputed multiplier far outside the normal range, indicating that the percentage fee will reward counsel for their services at an extraordinary rate even accounting for the factors customarily used to enhance a lodestar fee, the trial court will have reason to reexamine its choice of a percentage. (Walker & Horwich, *supra*, 18 Geo. J. Legal Ethics at p. 1463.)

Laffitte v. Robert Half Internat. Inc. (2016) 1 Cal. 5th 480, 504.

Plaintiff has provided evidence that 104.6 hours spent on the case between counsel and a paralegal. Based on the rates suggested, the lodestar would be \$63,422.50. This proposed fee contemplates a multiplier of 6.07. Plaintiff did not provide much evidence to support the rates suggested. The rate suggested for Aidan D. Ghavimi is \$925 per hour. No evidence has been provided regarding Aidan D. Ghavimi's qualifications and the Court finds this hourly rate to be unreasonably high and not supported by evidence. Zachary D. Greenberg suggests an hourly rate of \$625 for himself and only provides his opinion as to the reasonableness of the rate, that he is licensed in California, and has experience in wage and hour class actions and PAGA matters. Nothing was provided regarding the paralegal's suggested rate of \$200 per hour other than the opinion that this is reasonable for Los Angeles County. While the multiplier would be 6.07 under the requested attorney's fee and suggested lodestar, it is likely higher given the hourly rates used to calculate the lodestar.

If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment. Courts using the percentage method have generally weighed the time counsel spent on the case as an important factor in choosing a reasonable percentage to apply. (5 Newberg on Class Actions, *supra*, § 15:86, pp. 332-333; see, e.g., *In re Thirteen Appeals Arising Out of San Juan Dupont Plaza Hotel Fire Litigation*, *supra*, 56 F.3d at p. 307 ["even under the [percentage of fund] method, time records tend to illuminate the attorneys' role in the creation of the fund, and, thus, inform the court's inquiry into the reasonableness of a particular percentage."].) A lodestar cross-check is simply a quantitative method for bringing a measure of

the time spent by counsel into the trial court's reasonableness determination; as such, it is not likely to radically alter the incentives created by a court's use of the percentage method. *Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal. 5th 480, 505.

“Multipliers can range from 2 to 4 or even higher.” *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 255 (overruled on other grounds in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal. 5th 260). *Wershba* cited two cases for the quoted sentence. The first is *Coalition for L.A. County Planning Etc. Interest v. Board of Supervisors* (1977) 76 Cal. App. 3d 241 where the approved attorney fees yielded a multiplier of 2.04. The second case cited by *Wershba* is *Arenson v. Board of Trade* (Ill. N. D. 1974) 372 F. Supp. 1349 which did not include a lodestar cross check and instead focused on a reasonable attorneys’ fee in a massive and landmark antitrust lawsuit. In setting the attorneys’ fee, the court wrote, “This Court's award of four times the hourly rate of the plaintiffs' attorneys is meant to adequately compensate them for initiating this significant litigation and negotiating such a beneficial settlement for the class; yet at the same time this award is not meant to provide a windfall to the plaintiffs' attorneys.” *Id.* at 1359. This is where the multiplier of 4 stems from. This Court did significant research to determine if a multiplier of 6 has ever been approved and was unable to locate such a case. Most cases reviewed were in the range of 1.5 to 2.

The Court finds that awarding the requested fee of \$385,000 when the evidence provided by Plaintiff shows only \$63,422.50 in actual legal work is not in the interest of justice. This is amplified by the rates being listed for counsel being set at \$925 and \$625 per hour with either no or very little evidence for the reasonableness of these rates. The Court notes that no objections were received, however, the Court also notes that the Class Notice provided no indication that the lodestar was so low in comparison to the requested fee.

The Court finds that a multiplier of 3 is fair and reasonable under the circumstances. This fairly and adequately compensates Class Counsel without it amounting to a windfall. A multiplier of 3 results in the following final breakdown of the settlement.

Total Settlement Amount	\$1,100,000.00
Proposed Attorneys’ Fees	-\$190,267.50
Litigation Costs and Expenses	-\$25,848.51
Settlement Administration Costs	-\$9,650.00
Proposed Class Representative Enhancement	-\$7,500.00
PAGA Claim Settlement Allocation	-\$50,000.00
Payment to Labor and Workforce Development Agency (LWDA) (65%)	(\$32,500.00)
Payment to Aggrieved Employees as Individual PAGA payments (35%)	(\$17,500.00)
Remaining to be Disbursed to Class Members and PAGA Employees	\$834,233.99

The motion is **GRANTED** with the modified breakdown provided above. Plaintiff submitted a Proposed Order that will be modified to reflect the Court’s ruling. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, April 26, 2027 at 9:00 a.m. in Department 63** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, any uncashed checks were transmitted to the State of California Unclaimed Property Fund, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than April 16, 2027.

BAMFORD, ET AL. VS. BURNEY WATER DISTRICT
CASE NUMBER: 24CV-0204809

Tentative Ruling on Order to Show Cause Re: Sanctions: On My 7, 2026, the Court issued an Order to Show Cause Re: Sanctions (OSC) to Guardians ad Litem Artensia Eaton and Lavon Bamford. The OSC was mailed directly to each Guardian ad Litem. The basis for the OSC is that both Guardians ad Litem failed to communicate